

San Jose again tries to tighten controls on license plate readers



by [Keith Menconi](#) September 23, 2026



An automated license plate reader from Flock Safety. Photo courtesy of the Santa Clara County Sheriff's Office.

Facing public outcry over alleged misuse of San Jose's automated license plate reader data, a group of elected leaders has unveiled new safeguards for the controversial technology.

The safeguards, announced Wednesday, aim to make it harder for city employees to use personal devices to access sensitive law enforcement data, including that gathered by license plate readers. They would also expand audits designed to catch illicit searches. In addition, backers of the proposal — which include Mayor Matt Mahan, Vice Mayor Pam Foley and Councilmembers Domingo Candelas and George Casey — want the city to push for state legislation to stiffen penalties for improper handling of automated license plate reader (ALPR) data.

“ALPRs have helped us solve serious crimes, but we need strict limits on how and when data can be accessed, regular audits to make sure our rules are being followed and real consequences when they’re not,” Mahan said in a statement.

The policy package — set to go before San Jose’s Rules and Open Government Committee Sept. 30 — comes weeks after news surfaced that the San Jose Police Department fired an officer in April over allegations that he misused license plate reader data. An investigation determined the officer shared location information with his cousin, who used the data to track a woman accusing him of domestic violence, [according to the Mercury News](#).

The revelations have reignited the simmering debate in San Jose over the city’s ALPR network, as well as its relationship with the vendor behind the equipment, Atlanta-based firm Flock Safety. Critics contend the trove of location information generated by the city’s network of [516 license plate cameras](#) undermines residents’ privacy rights.

“This is completely unacceptable. We were promised this was not going to happen,” Evergreen resident Christopher Smith said during a recent council meeting in response to the news.

But the technology’s supporters have argued the cameras, first introduced in San Jose in 2022, have become an invaluable investigative tool for the city’s chronically short-staffed police force.

The proposed safeguards largely seek to expand and strengthen existing city policies. One measure would task the city manager with drawing up a plan to boost rules intended to prevent city employees from accessing law enforcement data on personal devices, perhaps by developing new tech tools.

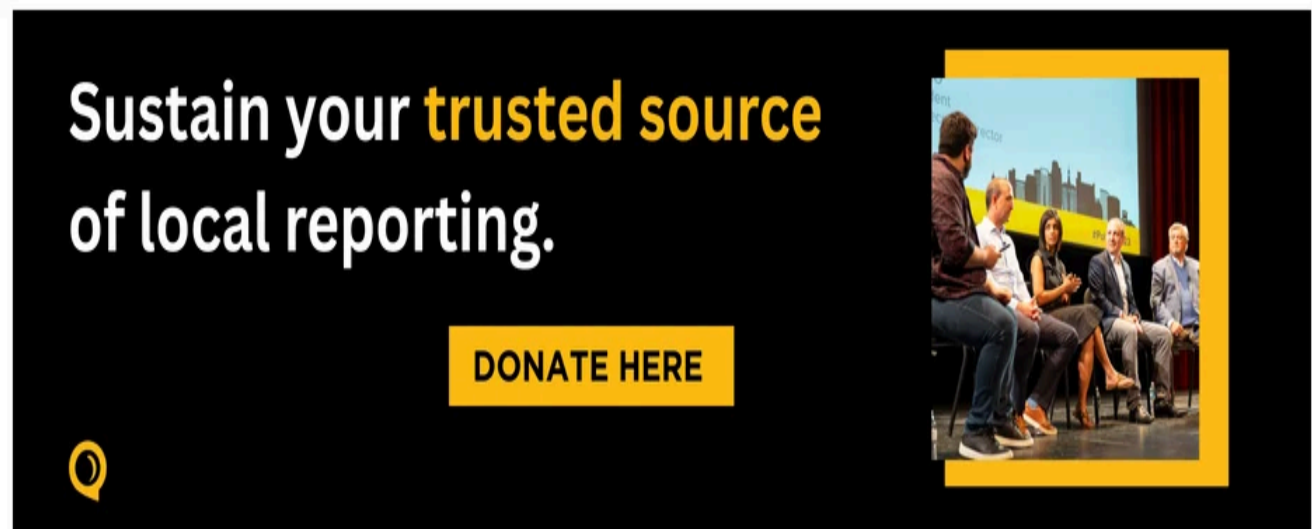
Backers also want the city to increase the frequency of audits designed to catch suspicious search activity, as well as violations of the city’s ALPR policy, such as its prohibition on use of the database for immigration related investigations.

The officials pushing the safeguards are also asking the city to lobby Sacramento to reform state laws that govern the use of law enforcement data. They contend the statutes don't cover ALPR data, leaving open a loophole that means that illicit use of the technology can go unpunished.

San Jose's use of the technology has come under increasing scrutiny amid growing concerns over surveillance and reported misuse. The city is facing [two lawsuits](#) over its [Flock network](#), including one filed in November 2025 by a coalition of local advocacy groups who allege the city's practice of allowing warrantless searches of its license plate data violates drivers' privacy rights.

Councilmembers already attempted to address such criticisms with a package of safeguards approved in March. They included restrictions limiting where the devices may be installed and also reduced the amount of time the city can hold onto the data from one year to 30 days.

However, the changes fell short of demands made by many residents calling on the city to follow the lead of other Bay Area jurisdictions — such as Santa Clara County, Los Altos Hills and [Mountain View](#) — and cut ties entirely with Flock Safety.



Nick Hidalgo, a staff attorney with the American Civil Liberties Union of Northern California, one of the groups involved in the November lawsuit — said the city's latest attempt to prevent misuse of ALPR data still falls short.

"They're PR moves. They do not actually comply with the law and they do not actually protect us," Hidalgo told San José Spotlight.

Hidalgo contends internal auditing is not enough to prevent malfeasance.

“The best route forward for communities is to advocate to their policymakers to just take down these cameras, break up with big surveillance tech and free yourself from constant government surveillance,” he said.

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